

		months of defendant's wrongful conduct. (Compl. ¶¶ 29-33.) Defendant may wish to consider retaining legal counsel to represent him and his co-defendant in this action. Plaintiff shall give notice.
54.	Sanchez v. Nissan North America, Inc. 2021-01213189	Plaintiff Jose J. Sanchez' motion for reconsideration of this court's 2-6-23 order compelling arbitration is GRANTED. The court hereby reconsiders its prior 2-6-23 order compelling arbitration on its own motion, and now denies defendant Nissan North America, Inc.'s motion to compel arbitration. (Code Civ. Proc., § 1008 [authorizing reconsideration]; <i>Le Francois v. Goel</i> (2005) 35 Cal. 4th 1094, 1108 [court's power to reconsider interim rulings]; <i>Pinela v. Neiman Marcus Group, Inc.</i> (2015) 238 Cal.App.4th 227, 237 [court's power to reconsider ruling compelling arbitration].) While the instant motion for reconsideration was filed more than 10 days after the 2-6-23 order (Code Civ. Proc., § 1008, subd. (a)), the court has the power to reconsider its interim decisions, even if triggered by an improper motion. (<i>Le Francois</i> at 1108.) Further: "If a court at any time determines that there has been a change of law that warrants it to reconsider a prior order it entered, it may do so on its own motion and enter a different order." (Code Civ. Proc., § 1008, subd. (c).) Accordingly, because this court may reconsider its previous orders at any time (<i>Le Francois, supra</i>) the court will elect to do so in this instance and consider the motion notwithstanding its untimeliness. In this action, the agreement requires arbitration of disputes between plaintiff and the dealer. (See Chung Decl., Ex. 3, Para. 30 [requiring arbitration of "any claim or dispute . . . between you and us"].) It could have expressly required plaintiff to arbitrate disputes with the manufacturer – but it does not.

		Defendant fails to show it may enforce the arbitration agreement, whether under equitable estoppel, third party beneficiary, agency, or any other doctrine. (See <i>Ford Motor Warranty Cases</i> [<i>Ochoa v. Ford Motor Co.</i>] (2023) 89 Cal.App.5th 1324, review granted [<i>Ochoa</i>]; see also <i>Montemayor v. Ford Motor Company</i> (2023) 92 Cal.App.5th 958 [<i>Montemayor</i>], and <i>Kielar v. Superior Court of Placer County</i> (2023) 94 Cal.App.5th 614 [<i>Kielar</i>].) In granting review of <i>Ochoa</i>, the Supreme Court held the Court of Appeal decision “may be cited, not only for its persuasive value, but also for the limited purpose of establishing the existence of a conflict in authority that would in turn allow trial courts to exercise discretion under <i>Auto Equity Sales, Inc. v. Superior Court</i> (1962) 57 Cal.2d 450, 456, 20 Cal.Rptr. 321, 369 P.2d 937, to choose between sides of any such conflict.” (<i>Ford Motor Warranty Cases</i>, July 19, 2023, order in Case S279969, 532 P.3d 270.) The court finds <i>Ochoa</i>, <i>Montemayor</i>, and <i>Kielar</i> to be more persuasive and better reasoned than <i>Felisilda v. FCA US LLC</i> (2020) 53 Cal.App.5th 486, upon which this court’s prior order compelling arbitration was based. Accordingly, the court reconsiders its prior 2-6-23 order compelling arbitration on its own motion, and now denies defendant Nissan North America, Inc.’s motion to compel arbitration. A Case Management Conference is scheduled for December 4, 2023 in C28 at 9:00 a.m. Plaintiff shall give notice.
55.	Kerns v. On Target Solutions, LLC 2019-01120703	Plaintiff Richard Kerns’ (plaintiff) motions to compel responses to his first set of special interrogatories and deem the matters in his first set of requests for admission admitted are GRANTED. (See Code Civ. Proc., §§ 2030.290, 2033.280.)